AFS Draft 8.28.24

FIFTH AMENDMENT

TO

GROUND LEASE

FOR

REAL ESTATE PARCEL EC-2C

BETWEEN

PARCEL EC-2C LLC, an Illinois limited liability company, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee

DATED AS OF: August 31, 2024

FIFTH AMENDMENT TO GROUND LEASE

This FIFTH AMENDMENT TO GROUND LEASE (this "Fifth Amendment") is made effective as of August 31, 2024 ("Effective Date") by and between **PARCEL EC-2C LLC**, an Illinois limited liability company ("Lessor"), successor lessor to CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under a Trust Agreement dated as of December 1, 2007 and known as Trust No. 1114334 ("Original Lessor"), and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee").

RECITALS

A. Original Lessor and Lessee entered into that certain Ground Lease dated as of December 1, 2007 ("Original Ground Lease"), a Short Form and Memorandum of which was recorded on January 31, 2008 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 0803133011, and pursuant to which Lessee leased from Lessor the premises legally described on Exhibit A to the Original Ground Lease, being the same premises legally described on Exhibit A attached hereto.

B. The Original Ground Lease was amended by that certain First Amendment to Ground Lease dated as of February 5, 2010 ("First Amendment"), by that certain Second Amendment to Ground Lease dated as of September 1, 2012 ("Second Amendment"), by that certain Third Amendment to Ground Lease dated as of December 22, 2015 ("Third Amendment"), and by that certain Fourth Amendment to Ground Lease dated as of April 1, 2020 ("Fourth Amendment"); said Original Ground Lease as amended by the First Amendment, the Second Amendment, the Third Amendment, and the Fourth Amendment, being herein referred to as the "Current Ground Lease"). The First Amendment provided (at the request of Lessee) certain relief from the full Base Rent required by the Original Ground Lease due to construction defects and construction cost overruns related to the development of the Project leading to higher than anticipated costs and lower than anticipated revenues for the Project. The Second Amendment provided (at the request of Lessee) certain additional relief in the form of a deferral of the Full Base Rent required to be paid under the Original Ground Lease, as amended by the First Amendment, on account of unexpectedly high prior year real estate taxes and ongoing operating expenses. The Third Amendment modified the Permitted Use for the Premises. The Fourth Amendment provided (at the request of Lessee) certain additional relief in the form of an extended deferral of certain amounts of Base Rent required to be paid under the Original Ground Lease, a portion of which was a direct result of the cancellation (or shortened) Spring 2020 youth hockey league due to the COVID-19 pandemic.

C. Lessee has again requested additional relief in the form of a deferral of certain amounts of Base Rent required to be paid under the Current Ground Lease, with such amounts to be held by Lessor in a segregated account and made available to Lessee to use for the purchase of new equipment for the North Shore Ice Arena, including a new chiller system, and Lessor has agreed to grant certain temporary additional relief to Lessee on the conditions set forth in this Fifth Amendment.

Accordingly, in consideration of their mutual agreements set forth herein, Lessor and Lessee hereby agree as follows:

1. **Defined Terms.** All capitalized terms used but not defined in this Fifth Amendment shall have the same meanings as in the Current Ground Lease, unless otherwise expressly provided in this Fifth Amendment. In addition, from and after the date hereof, the term "**Ground Lease**" as used in the Current Ground Lease and this Fifth Amendment shall mean and include the Current Ground Lease, as amended by this Fifth Amendment.

2. **Escrowed Ground Rent Payments.** Subject to and on the terms and conditions set forth in this Fifth Amendment, beginning with the installment of Base Rent payable for the month of September 2024 and continuing until the total amount held in the Escrow Account (defined below) equals Three Hundred Thousand and 00/100 Dollars ($300,000.00), Lessor shall hold each monthly installment of Base Rent paid by Lessee in a segregated account (the "**Escrow Account**") at a bank of Lessor's choosing. Based on the current schedule of Base Rent set forth in the Fourth Amendment, Lessor shall deposit into the Escrow Account the Base Rent payments that Lessee makes for the months of September 2024 through and including May 2025 (*i.e.*, nine payments of $31,666.67 each, for a total of $285,000.03), plus a portion of the Base Rent payment that Lessee makes for the month of June 2025 (*i.e.*, an amount equal to $14,999.97), so that the Escrow Account is funded with a total of Three Hundred Thousand and 00/100 Dollars ($300,000.00). The funds held in the Escrow Account from time to time are referred to herein as the "**Escrowed Funds.**" For the avoidance of doubt, Lessor is entitled to deposit the balance of the Base Rent payment made by Lessee for the month of June 2025 (*i.e.*, an amount equal to $16,667.70) in Lessor's operating account (or such other account(s) as Lessor may desire), and in no event shall Lessor be required to deposit those funds into the Escrow Account. Lessor is entitled to keep all interest earned on the Escrowed Funds, and Lessor shall have the right to disburse an amount equal to the interest earned thereon to another account or accounts controlled by Lessor at any time and from time to time. The Escrowed Funds will be held by Lessor in the Escrow Account and made available to Lessee for use in accordance with Section 4 below.

3. **Chiller Replacement Project.** Lessee acknowledges and agrees that Lessor is escrowing the Escrowed Funds solely as an accommodation to Lessee (and at Lessee's request) to allow Lessee to finance the replacement of the chiller system for the North Shore Ice Arena (the "**Chiller Replacement Project**"). Lessee represents and warrants to Lessor that Lessee has engaged Everything Ice, Inc., a Pennsylvania corporation (the "**Rink Contractor**"), to procure and install all equipment and to perform and oversee all work required to complete the Chiller Replacement Project (collectively, the "**Chiller Replacement Work**") pursuant to that certain AIA Document A104-2017 Standard Abbreviated Form of Agreement between Owner and Contractor dated as of August ___, 2024 (the "**Chiller Replacement Contract**"). Within one (1) Business Day after the Effective Date, Lessee shall provide to Lessor a true and correct copy of the fully-executed Chiller Replacement Contract. In addition, Lessee shall provide to Lessor copies of all change orders and modifications to the Chiller Replacement Contract and all notices sent by either party under or with respect to the Chiller Replacement Contract, in each case promptly upon the delivery, receipt, or execution thereof, as the case may be.

4. **Conditions and Procedures for Release of the Escrowed Funds.** Lessee shall have the right to request withdrawal of the Escrowed Funds from the Escrow Account, and Lessor shall disburse the Escrowed Funds to Lessee or directly to the Rink Contractor (as determined by Lessor) from time to time, in accordance with the following terms and conditions:

(a) Lessee shall submit to Lessor a written request for disbursement of the Escrowed Funds at least five (5) Business Days before the date on which the payment to which the Escrowed Funds will be applied is due to the Rink Contractor. The amount requested shall correspond to the invoice from the Rink Contractor then being paid. The date on which Lessor disburses any portion of the Escrowed Funds to Lessee or directly to the Rink Contractor (as determined by Lessor) is referred to herein as an "**Escrow Disbursement Date.**" Lessee's notice shall include (i) a copy of the invoice then being paid, (ii) a sworn statement from the Rink Contractor setting forth the original Contract Sum (as defined in the Chiller Replacement Contract), the amount of all change orders, the adjusted Contract Sum (including all extras and credits), the amounts previously paid by Lessee, and the balance to become due (the "**Outstanding Balance**") under the Chiller Replacement Contract, (iii) lien waivers for all sums previously paid by Lessee, and (iv) if the Outstanding Balance exceeds the amount of the Escrowed Funds (such excess amount, the "**Funding Gap**"), Lessee's source of funds or other plan to finance the Funding Gap.

(b) If the Outstanding Balance exceeds the amount of the Escrowed Funds, Lessor shall have the right, in its sole discretion, (i) to refuse to disburse the Escrowed Funds to Lessee, (ii) to disburse less than all of the Escrowed Funds to Lessee, or (iii) to condition the release of all or part of the Escrowed Funds to Lessee upon such terms and conditions as Lessor shall determine are reasonable under the circumstances, including without limitation requiring Lessee to reduce the Outstanding Balance by an amount sufficient to eliminate the Funding Gap and to resubmit the written request and contractor's sworn statement described in subpart (a) above.

(c) The Escrowed Funds shall not be used, except in the event of Default by Lessee, for any purpose other than payment to the Rink Contractor under the Chiller Replacement Contract without the consent of Lessor, which consent may be granted or withheld in Lessor's discretion.

5. **Repayment of the Escrowed Funds.**

(a) Lessee shall pay interest on the Escrowed Funds at a rate of five and one hundred twenty-five thousandths percent (5.125%) per annum. Interest shall accrue on the funds disbursed from the Escrow Account beginning on the Escrow Disbursement Date applicable to such disbursement.

(b) Lessee shall repay the Escrowed Funds and the interest due thereon to Lessor in forty-eight (48) consecutive monthly installments beginning on September 1, 2025 and on the first day of every month thereafter until August 1, 2029. Each monthly payment shall be in the amount of $7,531.25, such amount being the sum of (i) 1/48th of the Escrowed Funds (*i.e.*, $300,000 ÷ 48, or $6,250), *plus* (ii) 1/12th of the interest due thereon (*i.e.*, $300,000 x 5.125% ÷ 12, or $1,281.25). At Lessor's request, the first monthly installment shall also include all interest accrued from each applicable Escrow Disbursement Date through and including September 1, 2025.

(c) On August 1, 2029, any and all portions of the Escrowed Funds that have not been repaid to Lessor, including all accrued and unpaid interest, shall be due and payable.

(d) Notwithstanding the foregoing, if Lessee repays the entirety of the Escrowed Funds prior to August 1, 2029, then so long as no Default has occurred under the Ground Lease, Lessee shall be relieved of the obligation to pay interest on the Escrowed Funds for any month after the month in which the Escrowed Funds are repaid in full, meaning (for example) if Lessee repays the last of the Escrowed Funds on May 1, 2029, then Lessee need not pay the interest that would otherwise be due for the months of June, July, and August 2029.

(e) The amounts payable under this Section 5 are in addition to Lessee's regular installments of Base Rent and any other amounts due to Lessor under the Ground Lease.

6. **Other Terms Applicable to the Escrowed Funds and the Chiller Replacement Project.**

(a) If no event shall Lessee be entitled to request disbursement of any portion of the Escrowed Funds at any time while a Default exists under the Ground Lease. Upon the occurrence and during the continuance of a Default, Lessor may use the Escrowed Funds to cure such Default or retain the Escrowed Funds until such time as the Default has been cured by Lessee.

(b) In no event shall Lessor be required to deposit more than Three Hundred Thousand and 00/100 Dollars ($300,000.00) into the Escrow Account, regardless of whether the cost to complete the Chiller Replacement Work exceeds the amount budgeted by Lessee or if Lessee incurs unanticipated costs in connection with the completion of the Chiller Replacement Project or for any other reason.

(c) Lessee shall not amend the Chiller Replacement Contract without the consent of Lessor, which consent shall not be unreasonably withheld or delayed as long as (i) the Contract Sum (as defined in the Chiller Replacement Contract) does not exceed an amount equal to the combined total of Lessee's cash on hand plus the Escrowed Funds then held in the Escrow Account, and (ii) Substantial Completion (as defined in the Chiller Replacement Contract) of the entire Chiller Replacement Work does not extend beyond August 1, 2025.

(d) Lessee shall provide to Lessor monthly status reports regarding the progress of the Chiller Replacement Project. Lessee shall also meet with Lessor or its representatives from time to time upon request to provide detailed progress reports and to permit Lessor to review documentation related to the Chiller Replacement Project, including without limitation construction schedules, payment applications, and invoices.

(e) Lessee shall arrange for and furnish at its sole cost and expense any and all necessary consents and permits required by any Governmental Authority for the

construction and installation of the improvements constituting the Chiller Replacement Project.

(f) Lessee shall notify Lessor thirty (30) days before the date on which Landlord estimates the Rink Contractor will achieve Substantial Completion of the Chiller Replacement Project. Within five (5) days before Lessee's estimated date of Substantial Completion of the Chiller Replacement Project, Lessee shall notify Lessor of the impending completion date and, at Lessor's request, Lessee shall provide Lessor with a walk-through inspection of the ice rink and the Chiller Replacement Project.

(g) Throughout the course of construction, Lessee shall promptly notify Lessor if Lessee becomes aware of any material difference between the estimated cost of the Chiller Replacement Work and the actual Chiller Replacement Work (which notice shall include reasonable detail regarding the reason for the difference between the estimated and actual costs). If the actual Chiller Replacement Work cost is more than the estimated Chiller Replacement Work cost for any reason, including without limitation unforeseen or unanticipated matters or conditions, all such costs and payments shall be borne by Lessee, and Lessee shall provide to Lessor evidence that Lessee has (or Lessee's plan to obtain) funds to cover such additional expenses.

(h) At all times prior to disbursement to Lessee under Section 4 above, the Escrow Account and Escrowed Funds shall be considered Lessor's property. In no event shall Lessee or the Rink Contractor have any right to attach or otherwise claim a lien on the Escrow Account or any portion of the Escrowed Funds, nor shall Lessor be considered a guarantor of Lessee's obligations under or a party to the Chiller Replacement Contract.

7. **WHA and WHC Guaranty.** WHA and WHC shall remain obligated under the terms and provisions of that certain Guaranty of Payment and Performance of Ground Lease Obligations dated as of September 1, 2012 and executed by WHA and WHC (the "Existing Guaranty"), as amended as provided in this Fifth Amendment. In order to confirm WHA's and WHC's obligations under the Existing Guaranty extend to the Ground Lease Obligations, as amended by this Fifth Amendment, WHA and WHC shall execute and deliver the Joinder to this Fifth Amendment. As provided in the Second Amendment, each guarantor shall be liable for only fifty percent (50%) of any obligation under the Existing Guaranty (as amended by said Joinder) and shall not be jointly or severally liable thereunder, but Lessee understands and agrees that if and to the extent the failure by WHA and WHC to fund the full amount of any such obligation results in a failure by Lessee to cure any Default under the Ground Lease, such Default may become an Event of Default, upon which Lessor shall be entitled to exercise its rights and remedies provided for in the Ground Lease on account of such Event of Default.

8. **Addresses and Addressees for Notices to Lessor and Lessee.** The addresses and addressees for notices to Lessor and Lessee set forth in Section 24.1 of the Original Lease are hereby amended to read as follows:

For notices and communications to Lessor:

if sent by personal service or by courier service:

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
1985 Waukegan Road
Northbrook, Illinois 60062
Attention: President

or to (if by mail):

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
P.O. Box 6038
Techny, Illinois 60062-6038
Attention: President

in either case, with a copy to:

ArentFox Schiff LLP
233 South Wacker Drive, Suite 7100
Chicago, Illinois 60606
Attention: Janet M. Johnson or David S. Sattelberger

For notices and communications to Lessee:

North Shore Ice Arena, LLC
211 Founders Drive
Northbrook, Illinois 60062
Attention: President

with a copy to:

Club-Sports Consulting Group
3701 Pin Oak Court
Lisle, Illinois 60532
Attention: Don Lapato

9. **Reaffirmation and Confirmation of Ground Lease.** All of the terms, conditions, agreements, obligations and provisions set forth in the Current Ground Lease as amended, modified and supplemented by this Fifth Amendment shall be and they hereby are reaffirmed, ratified and confirmed in their entirety and incorporated herein by reference as if fully set forth herein.

10. **Governing Law.** This Fifth Amendment shall be governed by the laws of the State of Illinois, as may be amended from time to time, without giving effect to any choice or

conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than the State of Illinois.

11. **No Further Amendments.** Except as otherwise provided in this Fifth Amendment, in all other respects the Current Ground Lease shall remain unchanged and in full force and effect.

12. **Executed Counterparts.** This Fifth Amendment may be executed in one or more counterparts, each of which shall constitute an original, but all of which, when taken together shall constitute only one legal instrument. This Fifth Amendment shall become effective when copies hereof (when taken together) shall bear the signatures of both parties hereto.

[Signatures on following pages]

WITNESS the due execution of this Fifth Amendment by Lessor intending it to be effective as of the day and year first above written.

LESSOR:

PARCEL EC-2C LLC, an Illinois limited liability company

By:_____
Br Mathew C. Zemel, President

ACKNOWLEDGMENT

STATE OF ILLINOIS)
) SS
COUNTY OF COOK)

Br. Mathew C. Zemel, the President of **PARCEL EC-2C LLC**, an Illinois limited liability company, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such President appeared before me this day in person and acknowledged that he signed and delivered said instrument as his own free and voluntary act and as the free and voluntary act of said Company for the uses and purposes therein set forth.

GIVEN under my hand and notarial seal, this ____ day of _____, 2024.

_____
Notary Public

My Commission expires:

WITNESS the due execution of this Fifth Amendment by Lessee intending it to be effective as of the day and year first above written.

LESSEE:

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company

By: Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, one of its members

By: _____
Printed Name: Jeremy Hollis
Its: President

Attest: _____
Printed Name: Leslie Humbel
Title: Secretary

By: Winnetka Hockey Club, Inc., an Illinois not-for-profit corporation, one of its members

By: _____
Printed Name: Andrew McNesney
Its: President

Attest: _____
Printed Name: Joanne Wallace
Title: Secretary

Joinder to Fifth Amendment to Ground Lease

Wilmette Hockey Association, Inc. ("WHA"), an Illinois not-for-profit corporation, and Winnetka Hockey Club, Inc. ("WHC"), an Illinois not-for-profit corporation, have executed this Joinder to Fifth Amendment to Ground Lease ("Joinder") as of the date set forth below their signatures for the following purposes and for the purpose of acknowledging that the Existing Guaranty remains in full force and effect and is binding on WHA and WHC, except that WHA and WHC acknowledge and agree that the Existing Guaranty is hereby amended as follows:

1. Notwithstanding anything contained in the Existing Guaranty, WHA and WHC hereby consent to the execution and delivery of the Fifth Amendment by Lessee to which this Joinder is attached and acknowledge and agree that the enforceability of the Existing Guaranty (as amended as provided in this Joinder) shall not be terminated or otherwise affected by the Fifth Amendment.

2. As used in the Existing Guaranty, the term (a) "Lease" shall mean the Lease (as defined in the Existing Guaranty) as amended by the Fifth Amendment; (b) "Lessee's Obligations" (as defined in paragraph 2(a) of the Existing Guaranty) shall be deemed to include the following (which are in addition to, and not in substitution of, the other Lessee's Obligations described in the Fourth Amendment):

   (i) the full and prompt performance, completion, and observance by Lessee of each and all of the covenants and agreements required to be performed, completed and observed by Lessee under the terms and provisions of the Chiller Replacement Contract and the full and prompt performance and completion of the Chiller Replacement Project; and

   (ii) the full and complete repayment of the Escrowed Funds disbursed or used by Lessor for any payments under the Chiller Replacement Contract or otherwise in accordance with the provisions of the Fifth Amendment or the Ground Lease to cure any Default by Lessee thereunder or to reimburse Lessor for any costs incurred on account of any Default by Lessee under the Fifth Amendment or the Ground Lease;

   and (c) "Obligations" (as defined in paragraph 2(e) of the Existing Guaranty) shall include without limitation those set forth in subparts (i) and (ii) of this paragraph 2.

3. WHA and WHC hereby represent and warrant that all of the representations and warranties made severally by each of WHA and WHC in the Existing Guaranty are hereby remade as of the respective date this Joinder is executed by WHA and WHC as set forth below their signatures, remain true and correct as of the date of the respective date this Joinder is so executed and there are no changes or modifications thereto.

4. The addresses and addressees for notices to Lessor set forth in paragraph 8 of the Existing Guaranty are hereby amended to read as follows:

   For notices and communications to Lessor:

if sent by personal service or by courier service:

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
1985 Waukegan Road
Northbrook, Illinois 60062
Attention: President

or to (if by mail):

Parcel EC-2C LLC
c/o Techny Land Corporation NFP
P.O. Box 6038
Techny, Illinois 60062-6038
Attention: President

in either case, with a copy to:

ArentFox Schiff LLP
233 South Wacker Drive, Suite 7100
Chicago, Illinois 60606
Attention: Janet M. Johnson or David S. Sattelberger

For notices and communications to Guarantor:

Wilmette Hockey Association, Inc.
2111 Founders Drive
Northbrook, Illinois 60602
Attention: President

and to:

Winnetka Hockey Club, Inc.
2111 Founders Drive
Northbrook, Illinois 60062
Attention: President

5. All capitalized terms used but not defined in the Guaranty, as amended by this Joinder, or used but not defined in this Joinder shall have the meanings assigned to them in the Lease.

WHA:

WILMETTE HOCKEY ASSOCIATION, INC., an Illinois not-for-profit corporation

By: _____
Printed Name: Jeremy Hollis
Its: President

Attest: _____
Printed Name: Leslie Humbel
Title: Secretary

Date of Execution: September 23, 2024, intending it to be effective as of August 31, 2024

WHC:

WINNETKA HOCKEY CLUB, INC., an Illinois not-for-profit corporation

By: _____
Printed Name: Andrew McNerney
Its: president

Attest: _____
Printed Name: Joanne Wallace
Title: Secretary

Date of Execution: October 7, 2024, intending it to be effective as of August 31, 2024

ACKNOWLEDGMENTS

STATE OF ILLINOIS)
) SS
COUNTY OF COOK)

Execution of this Fifth Amendment and Joinder was acknowledged before me on SEPTEMBER 23, 2024 by JEREMY HOLLIS and _____ as the PRESIDENT and _____, respectively, of **Wilmette Hockey Association, Inc.**, an Illinois not-for-profit corporation, for and on behalf of said corporation, both individually and as one of the members of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

JBKugler
Notary Public

My Commission expires:

4/23/2027

Official Seal
Justin B Kugler
Notary Public State of Illinois
My Commission Expires 4/23/2027

STATE OF ILLINOIS)
) SS
COUNTY OF COOK)

Execution of this Fifth Amendment and Joinder was acknowledged before me on October 7, 2024 by Andrew McNesney and _____ as the President and _____, respectively, of **Winnetka Hockey Club, Inc.**, an Illinois not-for-profit corporation, for and on behalf of said corporation, but individually and as one of the members of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

Notary Public

My Commission expires:

12/3/2024

SHARON M WEBER
Official Seal
Notary Public - State of Illinois
My Commission Expires Dec 3, 2024

LEASEHOLD MORTGAGEE CONSENT TO FIFTH AMENDMENT TO GROUND LEASE

The undersigned, **UMB BANK, N.A.** ("UMB"), as successor trustee to Amalgamated Bank of Chicago, as trustee ("Amalgamated"), pursuant to that certain Assignment of Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing, effective as of April 24, 2020, recorded on June 24, 2020 as Document Number 2017620217 in the official Records of Cook County, Illinois, and as mortgagee under that certain Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing made by **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee") for the benefit of Amalgamated ("Leasehold Mortgage"), recorded on January 31, 2008 as Document Number 0803133012 in the Official Records of Cook County, Illinois, as may be amended, which encumbers the leasehold estate of Lessee, in Techny Parcel EC-2C legally described on Exhibit A attached hereto, created under and pursuant to that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007 ("Original Ground Lease"), by and between Lessee and Chicago Title Land Trust Company, not personally but as Trustee under a Trust Agreement dated December 1, 2007 and known as Trust No. 1114334 ("Original Lessor"), a Short Form and Memorandum of which was recorded on January 31, 2008 as Document No. 0803133011 in the Official Records of Cook County, Illinois, as such Original Ground Lease has heretofore been amended by that certain (i) First Amendment to Ground Lease dated as of February 5, 2010 between Original Lessor and Lessee ("First Amendment"), (ii) that certain Second Amendment to Ground Lease between Original Lessor and Lessee dated as of September 1, 2012 ("Second Amendment"), (iii) that certain Third Amendment to Ground Lease between Parcel EC-2C LLC ("Lessor") and Lessee dated as of December 22, 2015 ("Third Amendment"), and (iv) that certain Fourth Amendment to Ground Lease between Lessor and Lessee dated as of April 1, 2020 ("Fourth Amendment"; the Original Ground Lease, as amended by the First Amendment, Second Amendment, Third Amendment, and Fourth Amendment, being herein referred to as the "Current Ground Lease"), hereby consents to that certain Fifth Amendment to Ground Lease between Lessor and Lessee to which this Consent is attached, and Amalgamated hereby subordinates the lien of the Leasehold Mortgage to the terms and provisions contained in the Ground Lease, meaning the Current Ground Lease as amended by the Fifth Amendment.

Further, UMB hereby gives notice to Lessor that from and after the date of the Fifth Amendment, all notices and communications to UMB, as successor Trustee and Mortgagee under the Leasehold Mortgage should be provided in writing and deemed delivered to UMB (x) when actually delivered at the address set forth below, or (y) one (1) Day after deposit with a reputable overnight courier service providing delivery receipts, delivery charges prepaid, or (z) three (3) Days after deposit thereof in any main or branch United States post office certified or registered mail, postage prepaid, return receipt requested, in each case, properly addressed to UMB as follows:

UMB Bank, N.A.
120 South Sixth Street, #1400
Minneapolis, MN 55402
Attn: Lorna Gleason, Senior Vice President, Special Accounts

By notice complying with the foregoing requirements, UMB shall have the right to change the address or addressee, or both, for all future notices and communications to such party, but no such notice of a change of addressee or address, or both, by notice given hereunder shall be effective until actually received by Lessor.

Notices by UMB to Lessor shall be given to either of the addressees or addresses for notices to Lessor provided in Section 8 of the Fifth Amendment.

All capitalized terms used but not defined in this Consent shall have the meanings ascribed to them in the Ground Lease.

UMB BANK, N.A.

By:_____

Lorna Gleason, Senior Vice President, Special Accounts

ACKNOWLEDGMENT

STATE OF _____)
) SS
COUNTY OF _____)

This instrument was acknowledged before me on _____, 2024, by Lorna Gleason, as the Senior Vice President, Special Accounts of **UMB BANK, N.A.**, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such Senior Vice President, Special Accounts.

_____
Notary Public

My commission expires:

Exhibit A
Legal Description

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN: 04-14-305-005-0000

Address: 2111 Founders Drive, Northbrook, Illinois 60062